

# Smt. Sheela Devi And Another v. State of U.P. And 3 Others

High Court of Judicature at Allahabad · Division Bench · 11 May 2023 · 2023:AHC:101793-DB · Writ - C No. 15987 of 2023 · **No interference; finalize assessment under the Code and restore per outcome**

## HEADNOTE

A writ against a notice of provisional assessment in an electricity-theft case, brought after the consumer had objected and before final assessment, was disposed of without interference. The assessing authority was directed to finalize the proceedings expeditiously, strictly under the procedure in the Electricity Supply Code, 2005, and to restore supply depending on that outcome.

## FACTUAL SUMMARY

Smt. Sheela Devi and another challenged, before the Allahabad High Court, a notice of provisional assessment issued by the Electricity Department in a case of theft of electricity. The notice gave fifteen days to file an objection. The petitioners had already filed their objection, and the Department had not yet passed an order of final assessment. They sought the Court's interference with the provisional notice while those assessment proceedings remained unfinished.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::procedure

provisional assessment in a theft case

#### HOLDING

Where a notice of provisional assessment in a theft case has already been objected to and the final assessment is yet to be passed, no ground is made out to interfere with that notice. The assessing authority must finalize the proceedings expeditiously, strictly in accordance with the procedure under the Electricity Supply Code, 2005, and, depending on the outcome, restore supply to the premises. ¶ 3-4

**FLAG** The order names the Electricity Supply Code, 2005 and its prescribed procedure, but no clause number.

## PRINCIPLE TAGS

**premature-writ-against-provisional-assessment** The Court refused to interfere with the Electricity Department's provisional-assessment notice after the petitioners had filed their objection and before final assessment, and directed the authority to complete the Supply Code procedure expeditiously, with restoration only according to that outcome. ¶ 3-4

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS MADE OUT AND WHAT FINAL ASSESSMENT, IF ANY, SHOULD FOLLOW

The Court did not examine the objection or the notice on merits and left the final assessment to the authority under the Supply Code. ¶ 2-4